

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CALOX LAURENT,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. ALEXANDR YURCHENKO,Defendants,
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
August 14, 2020

Index No.:

Date purchased:

Plaintiff designates

KINGS County

as the place of Trial.

SUMMONS WITH NOTICE

The basis of the venue is

Place of Occurrence:

Brooklyn, New York



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; false arrest; false imprisonment; unlawful detention; malicious prosecution; violation of civil rights.
The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from September 7, 2019 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CALOX LAURENT,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. ALEXANDR YURCHENKO,

Defendants,
-----X

1. At all times herein mentioned, plaintiff **CALOX LAURENT** was and still is a resident of Kings County, the city and State of New York.

2. At all times herein mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The Police Department of the City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times herein mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department and its police officers, including P.O. Alexandr Yurchenko.

5. That at all times herein mentioned, defendant Alexandr Yurchenko, shield # 19254, acted within the scope of his employment under the New York Police Department.

6. That on September 19, 2019 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this lawsuit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on September 7, 2019 at approximately 11:00 pm near the intersection of East 99th Street and Avenue M, Brooklyn, NY, police officer Alexandr Yurchenko arrested plaintiff following a motor vehicle accident involving plaintiff.

10. That at all times herein mentioned, plaintiff was the operator of a 2006 BMW, license plate # JKZ7045, registered in the State of New York.

11. That at all times herein mentioned, Jems Jerome was the owner of said 2006 BMW, license plate # JKZ7045, registered in the State of New York.

12. That police officers, including P.O. Alexandr Yurchenko, confirmed the car was registered to Jems Jerome.

13. That police officers, including P.O. Alexandr Yurchenko, confirmed plaintiff had permission to drive Jems Jerome's car.

14. That police officers, including P.O. Alexandr Yurchenko, lacked probable cause to arrest plaintiff.

15. That police officers did not have a warrant to arrest plaintiff.

16. That P.O. Alexandr Yurchenko acted with malice.

17. That plaintiff was unlawfully detained and falsely imprisoned at the scene of the incident.

18. That the arrest constituted a false arrest.

19. That plaintiff was imprisoned at the 69th precinct.

20. That plaintiff was imprisoned at Central Booking.

21. That plaintiff was released from police custody at approximately 6:15 pm on September 8, 2019.

22. That plaintiff was not arraigned.

23. That the detainment and imprisonment of plaintiff constituted a false imprisonment.

24. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

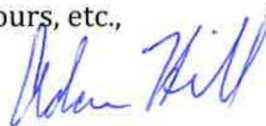
25. As a result of the foregoing, plaintiff sustained exemplary damages in an amount which exceeds the jurisdiction of any lower court.

26. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
August 14, 2020

Yours, etc.,



Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
Brooklyn, New York 11241
(718) 855-2324

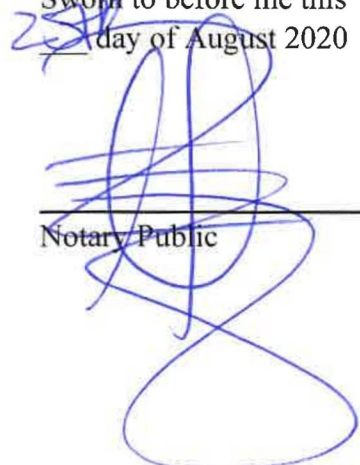
STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

CALOX LAURENT, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.


CALOX LAURENT

Sworn to before me this
25th day of August 2020



Notary Public

